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Dept. F49

Date: 9/10/26

Case Name: Franklin Rocael Lopez Orozco; Brenda Flores;
Laura Raymundo; and F.L., a minor, vs. Sauer Properties; Timothy Sauer;
Arthur Larson; Diana Castrejon; and Does 1 through 20

Case No. 25CHCV02352

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 10, 2026

DEMURRER; MOTION
TO STRIKE

Los Angeles Superior
Court Case No. 25CHCV02352

Motion filed: 4/7/26

MOVING PARTY: Defendants Sauer Properties and
Timothy Sauer

RESPONDING PARTY: Plaintiffs Franklin Rocael Lopez

Orozco, Brenda Flores, Laura Raymundo, and F.L., a minor by and through her Guardian ad Litem, Franklin Rocael Lopez Orozco

NOTICE: OK

RELIEF REQUESTED: An order from this Court sustaining

Defendants Sauer Properties and Timothy Sauer's Demurrer to the First Amended Complaint, and striking portions of the First Amended Complaint.

TENTATIVE RULING: The Demurrer is OVERRULED IN PART

and SUSTAINED IN PART. The Motion to Strike is GRANTED IN PART.

BACKGROUND

This habitability action arises

from alleged failures of Defendants Sauer Properties, Timothy Sauer, Arthur Larson ("Larson"), and Diana Castrejon ("Castrejon") (collectively, "Defendants") to properly maintain an apartment located at 11809 Hart Street, North Hollywood, California (the "Premises").

On July 2, 2025, Plaintiffs

Franklin Rocael Lopez Orozco ("Orozco"), Brenda Flores ("Flores"), Laura Raymundo ("Raymundo"), and F.L. ("F.L."), a minor by and through her Guardian ad Litem, Franklin Rocael Lopez Orozco (collectively, "Plaintiffs") initiated this action against Defendants and Does 1 through 20. On March 9, 2026, after the Court partially sustained a demurrer filed by Sauer Properties and Timothy Sauer (collectively, "Sauer Defendants"), Plaintiffs filed the operative First Amended Complaint (the "FAC"), alleging the following causes of action: (1) Breach of Contract, (2) Breach of the Covenant of Quiet Enjoyment, (3) Breach of the Implied Warranty of Habitability, (4) Negligence, (5) Intentional Infliction of Emotional Distress, (6) Violation of Business and Professions Code Section 17200 et seq., (7) Negligent Infliction of Emotional Distress, and (8) Nuisance.

On April 7, 2026, Sauer Defendants

filed the instant Demurrer and Motion to Strike.

On August 27, 2026, Plaintiffs

concurrently filed an Opposition to the Demurrer and Opposition to the Motion.

ANALYSIS

I.

DEMURRER

“The party against whom a complaint ... has been filed may object, by demurrer ... to the pleading on any one or more of the following grounds: ... (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc. § 430.10.) Uncertainty includes both ambiguous and unintelligible pleading. (§ 430.10, subd. (f).)

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)¹ When considering demurrers, courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank v. Kirwan (2006) 39 Cal.3d 311, 318.)² In a demurrer proceeding, the court treats all material facts properly pleaded as true, but does not assume “contentions, deductions or conclusions of fact or law. [Citation.]”³ (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) “Questions of fact may be resolved on demurrer only when there is only one legitimate inference to be drawn from the allegations of the complaint.”⁴ (TracFone Wireless, Inc. v. County of Los Angeles (2008) 163 Cal.App.4th 1359, 1368.)⁵

“It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. A demurrer tests only the legal sufficiency of the pleading.” (Berg v. Berg Enterprises, LLC v. Boyle (2009) 178 Cal.App.4th 1020, 1034.) The facts alleged in a complaint are deemed true “however improbable they may be. [Citation.]” (Id., at p.1034.)

Where a demurrer is sustained, it is generally an abuse of discretion to deny leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (Goodman v. Kennedy⁶ (1976) 18

Cal.3d 335, 349.)

A.

Meet and Confer Requirement

Before filing a

demurrer, “the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) Failure to meet and confer is not grounds for overruling the Demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

Sauer Defendants’

counsel, Emerson J. Tabone (“Tabone”), attests that he spoke to Plaintiffs’ counsel in March 2026 regarding the FAC, but could not reach resolution of the issues raised by the Demurrer and Motion. (Tabone Decl., ¶ 3.)

The Court finds the foregoing meet-and-confer effort to be satisfactory.

B.

Grounds for Demurrer

Sauer Defendants demur to each and

every cause of action of the FAC on the following grounds: (1) the pleading is uncertain, (2) the FAC fails to allege facts sufficient to state each cause of action, and (3) each cause of action is barred by the statute of limitations.

Sauer Defendants further demur to the first cause of action for breach of contract on the basis that it cannot be ascertained from the pleading whether the alleged contract is written, oral, or implied.

(1)

Uncertainty

“[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292 [citing Mahan v. Charles W.

Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3].)

“What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.)

Although Sauer Defendants demur to the FAC on the grounds that it is uncertain, they do not identify any allegations that are incomprehensible such that they cannot understand the basis for liability or would be unable to respond. The Court accordingly finds this an inadequate ground for sustaining the Demurrer.

(2)

First Cause of Action for Breach of Contract

To state a cause of action for breach of contract, a plaintiff must allege: (1) the existence of the contract; (2) the plaintiff's performance or excuse for nonperformance; (3) the defendant's breach; and (4) damages to the plaintiff as a result of the breach.” (CDF Firefighters v. Maldonado (2008) 158 Cal.App.4th 1226, 1239.)

A written contract may be pleaded either by setting out its terms verbatim, attaching a copy of the contract to the complaint and incorporating it by reference, or by alleging its legal effect. (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 993.)

Sauer Defendants contend that the first cause of action fails because it does not: (1) identify the parties to the contract, (2) state the date the contract was entered into, (3) state whether the contract was written, oral, or implied by conduct, (4) state any of the terms of the contract, or (5) state when the contract was breached. (Dem., at p. 7.)

Here, Plaintiffs allege that they entered into a lease agreement with Defendants whereby Defendants agreed to comply with all state and local laws, regulations, and ordinances concerning leasing of Plaintiffs' unit. (FAC, ¶ 69.) Among the duties to which Defendants

agreed was providing a habitable dwelling unit. (Id., ¶ 71.) In return, Plaintiff agreed to timely pay monthly rent. (Id., ¶ 69.)

Plaintiffs further allege that they continued to pay monthly rent throughout their tenancy and did not breach any terms of the lease. (FAC, ¶ 15.) They allege that Defendants breached their duties under the lease agreement by failing to provide and maintain a habitable condition at the Premises and failing to repair defective conditions. (Id., ¶¶ 16-18, 71.)

However, while the FAC states that Plaintiffs have resided in their unit for more than seven years and refer alternatively to a “rental agreement” and “lease agreement” between the parties, it does not indicate whether that agreement was written or oral or implied by the parties’ conduct. The first cause of action accordingly cannot withstand demurrer.

The Court thus SUSTAINS the Demurrer to the first cause of action of the FAC.

(3)

Second Cause of Action for Breach of the Covenant of Quiet Enjoyment

To state a cause of action for breach of the covenant of quiet enjoyment, a plaintiff must allege: (1) a lease agreement between plaintiff and defendant; (2) absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession; (3) an act or omission of the landlord, or anyone claiming under the landlord, which substantially interferes with a tenant’s right to use and enjoy the premises for purposes contemplated; and (4) an applicable remedy. (Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 588-591.)

Sauer Defendants contend that Plaintiffs have not stated a claim for breach of the covenant of quiet enjoyment because they have failed to allege constructive or actual eviction. (Dem., at p. 8.) In support, Sauer Defendants cite Ginsberg v. Gamson (2012) 205 Cal.App.4th 873. Ginsberg, however, does not require a plaintiff to allege eviction to recover damages for breach of the covenant of quiet enjoyment. Instead, Ginsberg reviews the distinction between the

type of damages that can be recovered in actions for implied breach, clarifying that tort damages may only be recovered in wrongful eviction cases. (Id., at p. 898.) The Court confirmed that “breach of the implied covenant of quiet enjoyment can be understood as a title encompassing claims for wrongful eviction, and also claims in which the tenant’s use of the premises is disturbed, but the tenant remains in possession.” (Ibid.) Failure to allege eviction is accordingly an insufficient basis to sustain the Demurrer.

Moreover, Plaintiffs allege that because of the ongoing habitability issues and Defendants’ failure to remedy them, they vacated the Premises on March 29, 2025. (FAC, ¶ 64.) They allege that this was Defendants’ ultimate intent in failing to correct the various defects about which Plaintiffs complained. (Id., ¶ 28.) Plaintiffs thus do allege constructive eviction.

Based on the foregoing, the Court OVERRULES the Demurrer to the second cause of action of the FAC.

(4)

Third Cause of Action for Breach
of the Implied Warranty of Habitability

To plead a cause of action for breach of the implied warranty of habitability, a plaintiff must allege: (1) a materially defective condition affects habitability; (2) notice was given to the landlord within a reasonable time after the tenant discovered, or should have discovered, the condition; (3) the landlord was given a reasonable time to cure the deficiency, and (4) damages. (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297; Quevedo v. Braga (1977) 72 Cal.App.3d Supp. 1, 7-8, disapproved of on other grounds by Knight v. Hallsthammar (1981) 29 Cal.3d 46, 53, 55.)

Sauer Defendants argue that breach of the implied warranty of habitability may not be asserted against them because Plaintiffs would have known when Sauer Defendants took control of the Premises in 2022 that there were defective conditions in the building. (Dem., at pp. 8-9.) Sauer Defendants assert that Plaintiffs cannot recover from damages that occurred because of the failure of the previous landlords to correct the deficiencies. (Ibid.)

As the California Supreme Court determined in *Knight*, supra, however, a tenant's remaining in uninhabitable premises after learning of defects does not waive the implied warranty of habitability. (29 Cal.3d, at p. 52-53 [allowing residential tenant to defend unlawful detainer action brought by successor landlord based on uninhabitable conditions that existed since possession under former owner].) Maintaining habitable premises is an ongoing obligation of the landlord for the duration of the tenancy. (*Green v. Super. Ct.* (1974) 10 Cal.3d 616, 637 ["[A] residential landlord covenants that premises he leases for living quarters will be maintained in a habitable state for the duration of the lease."].) Sauer Defendants accordingly may not avoid a cause of action for breach of the implied warranty of habitability because the defects arose under previous ownership.

The FAC adequately alleges a number of defects in Plaintiffs' unit, that Orozco complained about the defects to Defendants, that Defendants took no corrective action despite these complaints, and that Orozco suffered damages in the form of loss of use and enjoyment of the Premises, discomfort, and rents paid. (FAC, ¶¶ 27-31, 84-87.)

The Court accordingly OVERRULES the Demurrer to the third cause of action of the FAC.

(5)

Fourth Through Eighth Causes of Action for Negligence, Infliction of Emotional Distress, Violations of the Unfair Competition Law, and Nuisance

Sauer Defendants contend that the fourth through eighth causes of action fail to allege acts or omissions occurring within the relevant statutes of limitations. (Dem., at p. 9.)

Plaintiffs contend that the FAC alleges sufficient facts to infer acts and omissions occurring within the relevant two- and four-year limitations periods. (Opp'n, at pp. 8-9.) The Court agrees. The FAC alleges that Sauer Defendants became responsible for the ownership, management, and control of the Premises in July 2022. (FAC, ¶ 6.) The FAC further alleges that all Defendants persistently failed to correct known hazardous conditions during Plaintiffs' entire tenancy until they moved out in

March 2025. (Id., ¶¶ 28-64.) Plaintiffs allege repeatedly complaining to management about issues with their apartment, to no avail. (Id., ¶ 20, 28.)

While Plaintiffs do not state specific dates for every alleged occurrence, a demurrer based on the statute of limitations cannot be sustained unless it is clear from the allegations that the action is necessarily barred. (*Geneva Towers Ltd. Partnership v. City of San Francisco* (2003) 29 Cal.4th 769, 781.) “A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]” (Ibid.)

The Court finds that it is unclear on the face of the FAC that any cause of action alleged is barred by the applicable statute of limitations. This is therefore not a sufficient basis to sustain the Demurrer.

Sauer Defendants additionally assert that the eighth cause of action for nuisance “mimics” the second cause of action for breach of the covenant of quiet enjoyment and that Plaintiffs cannot show a substantial interference with the possession or use of the property because they continue to live there. (Dem., at p. 9.)

A court may properly sustain a demurrer to a duplicative cause of action, meaning a cause of action that states the same allegations without pleading additional facts. (*Award Metals, Inc. v. Super. Ct.* (1991) 228 Cal.App.3d 1128, 1135.) However, as Plaintiffs note in their Opposition, breach of the covenant of quiet enjoyment is fundamentally a contract-based claim, while private nuisance is a tort that is independent of any agreement between the parties. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 919.) A plaintiff may plead both contract and tort actions based on the same underlying conduct. (Id., at p. 929.) Sauer Defendants fail to provide any authority suggesting otherwise.

As to substantial interference, it may be effectuated by an omission rather than affirmative action. (*Stoiber*, supra, 101 Cal.App.3d, at p. 920.) The definition of nuisance, as

anything injurious to health, indecent or offensive to the senses, or obstructive to the free use of property, broadly encompasses “almost any conceivable type of interference.” (Id., at p. 919.) Here, Plaintiffs allege that Defendants, by refusing to act, permitted a number of conditions to persist in their unit that were hazardous to their health and safety, leading to adverse health consequences and breaches of the Premises that resulted in property loss. (FAC, ¶¶ 28-64.) The Court finds that these allegations are sufficient to constitute a substantial interference.

The Court OVERRULES the Demurrer to the fourth through eighth causes of action.

II.

MOTION TO STRIKE

Upon motion by a party, a court may “strike any irrelevant, false, or improper matter inserted in any pleading ... [or] all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subds. (a), (b).) A motion to strike may be directed against a whole pleading or any part of it. (§ 435, subd. (b)(1).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (§ 437.)

A. Meet and Confer

“Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a).)

Sauer Defendants’ counsel attests that he spoke to Plaintiffs’ counsel regarding the damages allegations and could not resolve the issues to be presented in the Motion. (Tabone Decl., ¶ 3.) The Court finds that this satisfies the meet-and-confer requirement of Code of Civil Procedure section 435.5.

B. Grounds for Motion

Sauer Defendants move to strike each and every prayer in Plaintiffs' Prayer for Relief and allegations related to punitive damages, restitution and disgorgement, and attorney fees.

As to punitive damages, Sauer Defendants contend that allegations of willful and malicious conduct are conclusory. While the allegations, standing alone, may be conclusions of law, the Court finds that in the context of other allegations in the FAC, there is sufficient specific conduct alleged that a trier of fact may find to be willful and in conscious disregard of Plaintiffs' safety. (See Civ. Code, § 3294, subd. (c)(1).) Plaintiffs allege persistent dangerous conditions in their apartment unit and on the Premises. They further allege that Defendants had notice of the dangerous conditions and refused to correct them. If proven, Defendants' alleged ongoing failure to remedy dangerous defects on Plaintiffs' property would support an award for punitive damages.

As to restitution and disgorgement, attorney fees, and each prayer for relief, Sauer Defendants contend that Plaintiffs fail to state facts entitling them to such relief. (Notice of Motion, at p. 2.) Sauer Defendants, however, offer no authority precluding the relief sought and identify no allegations that are lacking.

Nevertheless, the allegations for attorney fees in connection with the Unfair Competition Law ("UCL") claim are facially improper. The available remedies for UCL violations are injunctive relief and restitution. (Bus. & Prof. Code, § 17203.) The UCL does not provide for recovery of attorney fees; nor does any statute cited in the FAC.

Plaintiffs contend in Opposition that attorney fees and costs are permitted under Civil Code section 3345. That section, however, applies only in actions brought by senior citizens, disabled persons, and veterans, and operates to permit enhanced fines and civil penalties where such punitive remedies are already authorized by statute. (Civ. Code, § 3345, subds. (a), (b).) The section expressly applies only to remedies meant to punish or deter and is silent regarding attorney fees, which are not punitive or deterrent in nature. Courts uniformly hold that attorney fees are unavailable for UCL claims. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 179 [for UCL violations, "[p]laintiffs may not receive damages, much less treble damages, or attorney fees"]; *People ex rel. City*

of Santa Monica v. Gabriel (2010) 186 Cal.App.4th 882, 889 [“Attorney fees are not recoverable under the UCL.”].)

The Motion to Strike is accordingly GRANTED IN PART. Paragraphs 111-112 of the FAC are hereby stricken.

CONCLUSION

The Court OVERRULES IN PART and SUSTAINS IN PART Defendants Sauer Properties and Timothy Sauer's Demurrer.

The Court SUSTAINS the Demurrer to the first cause of action of the FAC for breach of contract. The Court OVERRULES the Demurrer to the remaining causes of action.

Defendants

Sauer Properties and Timothy Sauer's Motion to Strike is GRANTED IN PART. Paragraphs 111-112 of the FAC are stricken.

Plaintiffs are GRANTED 20 DAYS' LEAVE TO AMEND.

Moving party to give notice.